

Plaintiff moves to strike the Answer on the grounds that Defendant is not represented by counsel, and is proceeding in pro per. Plaintiff is correct that “[U]nder a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record.”]; *Blue Water Sunset, LLC v. Markowitz* (2011) 192 Cal.App.4th 477, 491 [122 Cal. Rptr. 3d 641] [“The limited liability companies may wish to take an active role in the litigation. If so, the weight of authority indicates that the limited liability companies must obtain independent counsel.”]” *Norman v. Strateman* (2025) 112 Cal.App.5th 92, 105, fn. 5.

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question. A pleading may be stricken only upon terms the court deems proper. It is generally an abuse of discretion to deny leave to amend, because the drastic step of denial of the opportunity to correct the curable defect effectively terminates the pleader's action.” *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146-1147 (internal citations omitted).

“...it is more appropriate and just to treat a corporation's failure to be represented by an attorney as a defect that may be corrected, on such terms as are just in the sound discretion of the court. First and foremost, this approach honors the cornerstone jurisprudential policies that, in furtherance of justice, complaints are to be liberally construed (§ 452) and disputes should be resolved on their merits.” *Id.* at 149.

Here, the Court will exercise its discretion to treat the Defendant's failure to be represented by an attorney as a defect that may be corrected. The Court will permit Defendant Rise Custom Apparel, LLC the opportunity to correct this defect by obtaining representation. The clerk is **directed** to issue an Order to Show Cause re retention of counsel. Defendant will have 30 days from notice of issuance of the OSC to retain counsel and file an association of counsel in this matter. The matter is set for hearing on the Order to Show Cause, as well as for further proceedings on the Motion to Strike, on **Monday, November 2, 2026 at 8:30 a.m. in Department 64.**

GEROSIN, ET AL. VS. REDDING SENIOR LIVING LLC, ET AL.

CASE NUMBER: 25CV-0209491

Tentative Ruling on Motion to Compel Further Responses: Plaintiffs move for an order compelling further responses to: 1) Plaintiff's Form Interrogatories, Set One (Nos. 3.7, 4.1, 12.1-12.3, 12.5-12.7, 14.1, 14.2, 16.1, 17.1, 50.1 and 50.3); 2) Special Interrogatories, Set One (Nos. 1-27, 29-36, 40, 42, 43, 47-52); 3) Requests for Admission, Set One (Nos. 11, 35, 36); and 4) Requests for Production, Sets One and Two (Nos. 1-16; 18-101). Plaintiffs further request the responses be verified, complete and straightforward, free of unsupported objections, compliant with CCP § 2031.280 by identifying documents responsive to each request, and where responsive documents do not exist or cannot be produced, state so clearly. Plaintiffs also request sanctions. Defendants oppose the Motion.

Merits. On receipt of a response to a demand for inspection or to interrogatories, a propounding party may move for an order compelling further responses if the responses are inadequate. CCP §§ 2031.310(a), 2030.300(a). A motion to compel further responses for production must show “good cause” for the request. CCP § 2031.310(b)(1). The motion must be accompanied by a meet

and confer declaration under Section 2016.040. CCP §§ 2030.300(b) and 2031.310(b). The Declaration of Megan Yarnall does not state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion, as required by section 2016.040.

Plaintiff has filed a single motion addressing five sets of discovery. The motion identifies five defects alleged to be common to all sets of discovery. The Court's ruling will follow this same format for clarity.

1. The responses are unverified.

The Declaration of Alaina Dickens, Defendant's counsel, establishes that verifications were provided on August 24, 2026. This issue is therefore moot.

2. Document production is not meaningfully identified – Defendant produced 2,200 pages of documents without identifying which are responsive to which requests.

Defendant is ordered to produce Bates stamped documents and to identify which are responsive to which requests. This order does not encompass a requirement that Defendant compile any new records.

3. Document production is internally inconsistent. Defendant represents it will produce additional responsive documents while stating that no additional responsive documents exist, so plaintiff cannot determine if production is complete.

Taking RFP No. 65 as an example, the Court finds Defendant's response is ambiguous in that it states: "After performing a diligent search and reasonable inquiry in an effort to comply with this demand, Responding parties *will comply* and produce the documents responsive to this request in their possession, custody or control. Responding Parties *have no additional documents* in their possession that are responsive to this request..." It is unclear from this response whether Defendants have performed a diligent search and reasonable inquiry, and whether they intend to represent their production is complete. Further responses are ordered.

4. Document Production is Incomplete.

Defendant is ordered to either represent that the production is complete after a diligent search and reasonable inquiry, or to produce further responsive documents.

5. Objections are unsupported. Boilerplate objections are used repeatedly without providing the factual showing necessary to justify withholding responsive information.

The Court finds that the objections are appropriate. No further production is ordered on the basis of objections.

Sanctions: Both sides request monetary sanctions pursuant to CCP §§ 2030.290(c), 2031.300(c), and 2033.280(c). Sanctions are mandatory against the unsuccessful party, absent substantial justification or other circumstances that would make imposition of the sanctions unjust. Here, the

Court finds that each party was unsuccessful in part and each had substantial justification for their position. Verifications were not provided timely, but Plaintiff did not adequately meet and confer before bringing this dispute before the Court. No sanctions will be imposed.

Going forward, the parties are required to meet and confer **by telephone or in person** as required by the Code of Civil Procedure. Additionally, the Court notes that Plaintiff's single Motion concerns five different sets of discovery and seeks further responses to nearly everything requested. Defendant's response to the Separate Statement runs to nearly 400 pages. To promote judicial economy, the parties are encouraged to contact the judicial assistant and request an informal discovery conference to narrow the issues prior to filing future discovery motions.

Plaintiff's Motion to Compel Further Verified Responses to Form Interrogatories, Set One; Special Interrogatories, Set One; Requests for Admissions, Set One; and Requests for Production of Documents, Sets One and Two is **GRANTED** in part, as detailed above. Plaintiff is ordered to submit a new proposed order consistent with this ruling. Defendant will be required to serve further responses as detailed above within 30 days of notice of entry of order.

LAURENCE VS. HOLT OF CALIFORNIA

CASE NUMBER: 25CV-0207217

Tentative Ruling on Motion to Strike Jury Demand and Posting of Jury Fees: Plaintiff Christopher Laurence was employed as a union field mechanic at Defendant Holt of California's Redding location from January 9, 2024 through May 13, 2024. Plaintiff filed his PAGA Complaint on March 11, 2025 alleging 8 causes of action ("PAGA claims"). Plaintiff filed a separate individual Complaint on June 17, 2025, alleging the same 8 causes of action ("Individual Claims"). The actions were consolidated by Court Order on September 15, 2025. Defendant moves pursuant to CCP 435(b)(1) and 436 for an Order striking Plaintiff's jury demand and posting of jury fees. Plaintiff opposes the Motion.

PAGA Claims: Plaintiff and Defendant agree that there is no right to a jury trial on the PAGA claims. "[A] PAGA action is an administrative enforcement action conducted in court on behalf of the state by an aggrieved employee who possesses 'the same legal right and interest' as the state. (*See Iskanian, supra*, 59 Cal.4th at 380.) However, that legal right and interest does not include the right to a jury trial. (*McHugh v. Santa Monica Rent Control Bd.* (1989) 49 Cal.3d 348.)" *LaFace v. Ralphs Grocery Co.* (2022) 75 Cal.App.5th 388, 397.

Individual Claims: Defendant argues that Plaintiff is not entitled to a jury trial on his individual claims because: 1) the claims are intertwined and cannot be bifurcated; 2) judicial estoppel precludes jury trial on any claims, because Plaintiff did not oppose the motion to consolidate, agreed to vacate his individual jury trial, and has referred to the matter as "PAGA-only" in prior filings; and 3) Plaintiff posted jury fees late based on the older, PAGA action's deadline.

"As a general matter, therefore, the California Constitution affords a right to a jury trial in common law actions at law that were triable by a jury in 1850, but not to suits in equity that were not triable by a jury at that time. (*C & K Engineering Contractors v. Amber Steel Co.* (1978) 23 Cal.3d 1, 8–9 [151 Cal. Rptr. 323, 587 P.2d 1136].) Under this test, it is the substance of a cause action—not its title or form—that is controlling. (*Nationwide Biweekly, supra*, 9 Cal.5th at p. 315.) In making this evaluation we look to the gist of the action: whether the nature of the rights involved and the facts of the particular case show that it is legal and therefore cognizable at law. (*Ibid.*)" *LaFace v.*